

default judgment was vacated in order to "punish" Five Hills for its complaints about the amount of the maintenance and repairs, which is what Five Hills now contends apparently in light of the litigation privilege and the holding in *Rusheen*.

The Court interprets Five Hills' opposition as an explanation of what it may be able to allege to state an abuse of process cause of action if given leave to amend. The Court **sustains** the general demurrer to the second cause of action, **with leave to amend**.

**Law & Motion
Add On**

19. 9:00 AM CASE NUMBER: N25-1850

CASE NAME: ADEL PARK, LLC VS. ANGRY GROUP, LLC

JUDGMENT

FILED BY: ANGRY GROUP, LLC

TENTATIVE RULING:

This matter is set for hearing on Defendant's motion for summary judgment Under California Rules of Court, rule 3.1351(b), a party may oppose the motion orally at the hearing or by filing and serving a written opposition at least one court day before the hearing. Because any written opposition is not due until the day before the hearing, the court cannot issue a tentative ruling in advance. **All parties are therefore required to appear, either in person or by Zoom.**

If a written opposition is filed, the court requests that a courtesy copy be emailed to the department in advance of the hearing, if practicable, with a copy to all opposing parties or their counsel. The email should indicate that the court has authorized this courtesy copy for this matter.